

School: Overstrand The Belfry

Date: 17.3.21

Report: Remote consultation

DPE: Linda Mortimer

School member: Titus Cotton, Headteacher, Heather Duxbury, GDPR Governor

Consultation details – 17 March 2021

- Review of school policies; Data Protection Policy, Privacy Notice
- Review of common breaches
- Review of training i.e. GDPR refresher and work away from school. DPE recommends that all staff refresh their GDPR training on a 2-yearly basis with recommendation that all staff complete Data Breach, Staying Safe Online and Clear Desk training. DPE recommend that school leadership, including GDPR Governor, complete SAR training
- Website updates including Best Practice areas – CCTV, SARs, Breaches, Child Friendly Privacy Notice
- Demonstration of the Record of Processing Tool and its role in compliance with Article 30 of the GDPR

Priorities from the consultation are detailed below:

1. **Update the GDPR Policy and Privacy Notices** to the latest DPE version or amend existing to include COVID-19 related information. There are now separate Privacy Notices for: Workforce, General and Students and there is now a child friendly notice. Ideally you will now update your documentation to the latest versions as there have been several revisions.

The school has CCTV in place and requires the relevant policy for publication on the school's website and other related documentation required to manage the system

LM will adapt the DPE model CCTV policy and other related documents for use by Overstrand Primary

2. **Common breaches were discussed with particular emphasis on:**

Email communication: Care to be taken to ensure that the correct recipient is selected; the use of BCC facility to ensure email addresses remain private; care taken to ensure that correct attachments are sent.

Posting student records: DPE recommend using the Special Delivery facility, which can be tracked rather than relying on Registered post which is not tracked.

Uploading student work for home learning: Care should be taken when uploading work for remote learning – when staff upload work to the school's website DPE recommend that all files and folders are closed down on the computer **prior** to the uploading process.

3. **Training**

Review of training to date: General GDPR training was discussed and it is evident that this should be a priority for all staff within the school. The GDPR Governor will also take part in this training and access via Knowledge Bank

Other training: All staff would benefit from Data Breach training, Staying Safe Online and Clear Desk. The school leadership, including the GDPR Governor would benefit from SAR training

Kalina will provide an online session to familiarise the Headteacher and GDPR Governor with Knowledge Bank and a particular emphasis on training.

4. **Website Updates:** LM provided an overview of the DPE website and demonstrated where to access the Child Friendly Privacy Notice, standard DPE model policies, best practice areas including CCTV and the news section.
5. **Record of Processing (RoP):** Linda Mortimer will work with Helen in the summer term to help tailor the following RoPs for the school:
Finance: Reconciliation of Monthly Payroll (FIN09); New Starter (FIN13); Leaver (FIN06); Budget Setting (FIN14); Financial Audit (FIN7); Payroll Processing (FIN5)
Roll out of other RoPs: DPE are currently developing a tool to roll out all other RoPs, spanning the various areas of school management. LM suggested that once this has been actioned, a further meeting is arranged with the Headteacher, GDPR Governor and School Secretary to identify which ones are relevant to the school and prioritise the RoPs for amendment to reflect the actual practice that takes place at Overstrand.
6. **Compliance action best practice area/checklist and governor best practice area:** This was not reviewed at the time of the meeting, however this could be included in the agenda for the next meeting with the Headteacher and GDPR Governor.

It is worth noting that the compliance best practice area/checklist can be used to manage progress, print off reports for Governors and support consultants during visits/remote consultations.

Links and additional guidance in order of priority actions detailed below:

1. GDPR policy update and Privacy notice updates

The latest GDPR policy and Privacy Notices can be located from the compliance best practice area:

<https://dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance>

Regardless of adopting the very latest documents your current privacy notice and policy should now include sections for COVID-19 - refer to the July 17 update: <https://dataprotection.education/index.php/best-practice-library/best-practice/coronavirus>

2. Setting staff up for e-learning training and mini training guides

You should now be reviewing training i.e. GDPR refresher, data breaches and work away from school. You can check which staff have or have not completed the various modules by selecting the reports from your dashboard: <https://dataprotection.education/manager-reports?view=reports>

Users can be set up on the system by adding individually or importing as a group:

<https://dataprotection.education/student-list/users>) Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education

All staff should now have completed some form of data protection training.

The dashboard now has mini training videos for many of the main areas, including data breaches and SARS. There is also a data breach and SAR best practice area where all the information is now situated.

3. Publication scheme

The publication scheme has now been updated and as a public authority you should have one. **The updated guidance can be obtained from:** <https://dataprotection.education/news-top/news/83-best-practice-updates/182-model-publication-scheme-amendments-improvements-and-updates>

Updated publication schemes can be obtained from: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/freedom-of-information>

4. Audit walk

As we are unable to visit at present it is worth considering completing your own internal walk. You can check against previous report findings to identify improvements or areas that still need to be improved. You can also use the best practice guides to support the process: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guid>

DPE will also be providing a live online audit walk that will be available shortly (demonstrated during the consultation).

5. Record of Processing (RoP)

The RoP will start to be used for your record of processing. DPEs methodology for rolling out the RoP can be found here: <https://kb.dataprotection.education/news-top/news/94-siteupdates/175-record-of-processing-rop-supporting-information> The RoP can be used for risk assessments (DPIAs), especially where new technologies are being introduced. Always email: dpo@dataprotection.education for support if needed.

Next steps:

We will work with you and demonstrate how the RoP can be adapted to reflect your school's individual practice.

Step 1 - a general introduction to the RoP tool with a brief overview of the generic process relating to financial/management of the school. This will be provided at the online meeting with Susie Willingham

Step 2- a more in depth look at the RoP with key process owners and how completing the master lists will ensure the school reflects the technical measures and procedures it has in place to safeguard personal data.

Step 3 – online workshops and group sessions to support schools with further individual sessions as needed.

Note: a number of reporting functions i.e. risk reports will shortly be available.

6. Compliance checklist and governance

A reminder that the **compliance checklist** can be used to support ongoing compliance, supporting consultants during remote sessions and for monitoring with governors. Reports can be printed from the compliance checklist: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance> There are many more checklists that you'll find useful.

In addition, the governor best practice and terms of reference can also be used to support compliance if needed: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/governors-and-data>

Q&A

The school asked if LM could prioritise the Finance RoPs for the school and these are noted above.